

26STCP00241 26STCP00241

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-17

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Case Number: 26STCP00241 Hearing Date: July 17, 2026 Dept: 510

No.

9 - In the Matter of: Nelson Tucker

Petitioner Nelson Tucker's Petition

for Adjudication of Newspaper Pursuant to California Government Code section
6000

Petitioner Nelson Tucker dba CalPublications.com

moves for an order granting his petition to adjudicate CalPublications.com as
an authorized newspaper for purposes of publishing legal notices and documents.
This Court has authority to decide this petition under Los Angeles Superior
Court Local Rule 2.8(e).

In certain circumstances, notice to a party in
litigation can be provided through publication in a newspaper. (See, e.g., Code
Civ. Proc. § 415.50(b) (where service of process by conventional means cannot
be effected, "The court shall order the summons to be published in a named
newspaper, published in this state, that is more likely to give actual notice
to the party to be served.")) As is apparent from the statute, the purpose of
publishing a notice in a newspaper is to increase the prospects that a party
receives notice of the pending litigation when other means for service have
failed. In 1943, when the legislature adopted section 6000, it presumably assumed
that most persons obtained their news from a regularly-published newspaper of
general circulation and would see a notice that they had been sued. In short,
they were doing something else when they happened to see a notice that they had
been sued.

In contrast, the primary purpose of Petitioner's

website is to publish legal notices. The target audience – i.e., persons being sued – would have to go to the website not for news, but expressly to determine if they have been sued.

“Whenever a newspaper desires to have its standing as a newspaper of general circulation ascertained and established, it may, by its publisher, manager, editor or attorney, file a verified petition in the superior court of the county in which it is established, printed and published, setting forth the facts which justify such action.” (Gov. Code, § 6020.)

For both procedural and substantive reasons, the Court cannot grant the relief that Petitioner seeks. Procedurally, the petition is to be published both in the petitioning newspaper and “in some other newspaper of general circulation published in the same city as the petitioning newspaper if there is one.” (Gov. Code, § 6021(a), (b).) There is no indication that the Petition was published either on CalPublications.com or in a newspaper of general circulation in Los Angeles County. This omission alone is grounds to deny the Petition.

The Petition also fails substantively. Under California Government Code section 6000, “A ‘newspaper of general circulation’ is a newspaper published for the dissemination of local or telegraphic news and intelligence of a general character, which has a bona fide subscription list of paying subscribers, and has been established, printed and published at regular intervals in the State, county, or city where publication, notice by publication, or official advertising is to be given or made for at least one year preceding the date of the publication, notice or advertisement.” Government Code section 6008(a) details the requisite criteria for a “newspaper of general circulation”:

“1. It is a newspaper published for the dissemination of local or telegraphic news and intelligence of a general character, which has a bona fide subscription list of paying subscribers and has been established and published at regular intervals of not less than weekly in the city, district, or public notice district for which it is seeking adjudication for at least three years preceding the date of adjudication.

“2. It has a substantial distribution to paid subscribers in the city, district, or

public notice district in which it is seeking adjudication.

“3. It

has maintained a minimum coverage of local or telegraphic news and intelligence of a general character of not less than 25 percent of its total inches during each year of the three-year period.

“4. It

has only one principal office of publication and that office in is the city, district, or public notice district for which it is seeking adjudication.”

Section 6008 specifies that all four criteria must be met. These requirements were not modified when the statute was last amended in 2016, long after the internet had become ubiquitous.

According to the verified Petition and the nearly-identical brief in support of the Petition, Petitioner’s website is a “bona fide online digital legal notice newspaper” that has published legal notices since 2018. (Petition, ¶ 1; Brief, ¶ 1.) Petitioner presents no evidence, though, that the website also disseminates local or telegraphic news of a general character, that it has a “substantial distribution to paid subscribers,” that at least 25% of its publication is devoted to local or telegraphic news and intelligence, or even that there is a single principal office of publication in Los Angeles County, where Petitioner seeks this order. All of these items are required by Government Code section 6008. As such, Petitioner provides insufficient evidence that CalPublications.com is a newspaper of general circulation as defined by the California legislature.

The Court’s personal visit to the website on July 14, 2026, confirms that it does not contain local news of a general character. Rather, the website has one page titled “LEGAL NEWS” with four posts that were “published” from May 21 to June 1, 2026. The first post, “Recent Legal Developments,” contains a list of links to articles posted by other legal newspapers and websites. The second post, “Guide to Service by Publication in California,” explains California service of process requirements. The final two posts duplicate the first two. None of these posts – even if they were considered local news – have existed for at least one year or were published by Petitioner at regular intervals. Nor is there any apparent means to subscribe. By all indicia, this is not a newspaper of general circulation as contemplated by the statute.

The Court does not dispute Petitioner's contention that the definition of "newspaper" should expand as "modern methods of communication have changed over recent years as our society has evolved into an increasingly mobile and technologically advanced way of getting news and obtaining information." (Petition, ¶ 9; Brief, ¶ 11.) This argument, though, needs to be made to the California legislature, which has the power to amend Government Code sections 6000 and 6008 should amendment be warranted. The Court cannot make that amendment for Petitioner.

Disposition

Petitioner Nelson Tucker dba CalPublications.com's petition for adjudication of newspaper pursuant to California Government Code section 6000 is denied.